

Sanjog Shetty vs Archana Shetty on 18 August, 2023

Author: G.Narendar

Bench: G.Narendar

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NC: 2023:KHC:29485-DB
MFA No.4099 of 2020

IN THE HIGH COURT OF KARNATAKA AT BENGALURU
DATED THIS THE 18TH DAY OF AUGUST, 2023

PRESENT

THE HON'BLE MR. JUSTICE G.NARENDAR

AND

THE HON'BLE MR. JUSTICE VIJAYKUMAR A. PATIL

MISCELLANEOUS FIRST APPEAL NO.4099 OF 2020 (FC)

BETWEEN:

1. SANJOG SHETTY
S/O DR. MOHAN SHETTY B.S.
AGED ABOUT 42 YEARS
R/AT NO.138, JYOTHILAXMI
OPP. MAHILA SAMAJ
T M ROAD, KOPPA
CHIKMAGALUR-577126.

...APPELLANT

Digitally
signed by
RUPA V
Location:
HIGH
COURT OF
KARNATAKA

(BY SRI. GIRISH KODGI, ADV.,)

AND:

1. ARCHANA SHETTY
W/O SANJOG SHETTY
AGED ABOUT 39 YEARS
R/AT NO.999, 4TH STAGE, 14TH MAIN
T K LAYOUT, MYSURU-570009.

...RESPONDENT

(BY SRI. B.K. MOHAN, ADV.,)

THIS MFA IS FILED U/S.19(1) OF FAMILY COURTS ACT,
AGAINST THE JUDGMENT AND DECREE DATED:31.10.2019
PASSED IN M.C. NO.432/2018 ON THE FILE OF THE PRL.
JUDGE, FAMILY COURT, MYSURU, ALLOWING THE PETITION
FILED U/S.13(1)(ia) AND (ib) OF THE HINDU MARRIAGE ACT.

THIS APPEAL, COMING ON FOR ADMISSION, THIS DAY,

VIJAYKUMAR A. PATIL J., DELIVERED THE FOLLOWING:

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JUDGMENT

This appeal is filed under Section 19(1) of the Family Courts Act, 1984 against the judgment dated 31.10.2019 passed in M.C.No.432/2018 on the file of the Principal Judge, Family Court, Mysuru, (for short, 'the Family Court') by which the petition filed by the respondent-wife under Section 13(1)(ia)(ib) of the Hindu Marriage Act, 1955 seeking dissolution of marriage on the ground of the cruelty and desertion was allowed by directing the appellant-husband to pay permanent alimony of Rs.20,00,000/- to the respondent-wife. The present appeal is filed by the appellant-husband only insofar as award of permanent alimony to the respondent-wife.

2. This Court vide order dated 20.11.2020 has granted interim order of stay of impugned judgment with regard to payment of alimony subject to appellant depositing a sum of Rs.15,00,000/- before this Court.

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3. Learned counsel for the appellant and the learned counsel for the respondent submit that the appellant-husband has deposited a sum of Rs.15,00,000/- before this Court and the said amount has been withdrawn by the respondent-wife.

4. Learned counsel for the appellant and learned counsel for the respondent jointly submit that at the intervention of elders and well-wishers, the appellant- husband and the respondent-wife, in the conciliation, have arrived at an amicable settlement of the dispute and accordingly they have filed a compromise petition under Order XXIII Rule 3 of the CPC.

5. The compromise petition read as under:

"The petitioner and respondent has agreed for an Additional Sum of Rs.3.00 lakhs apart from Rs.15 lakhs already deposited before this Hon'ble Court. Further, the said amount will be transferred to the respondents bank account within a period of 4 weeks from today. It is also agreed that the execution pending before the Prl Judge Family Court at Mysuru will be closed by the respondent NC: 2023:KHC:29485-DB as the claim is fully satisfied, with this above appeal may dismissed as settled. Hence, this petition.

VERIFICATION I, Sanjog Shetty S/o Dr.Mohan Shetty B.S, aged about 42 years the petitioner, and Archana Shetty

- Respondent, do hereby solemnly affirm and verify that the contents of the above petition are true and correct to the best of my knowledge and information and we understand the same."

6. We have gone through the terms of the compromise petition, they are not opposed to public policy and not opposed to law. The learned counsels for the respective parties identify the appellant-husband and the respondent-wife, who are present before the Court. The parties to the proceedings express that they have entered the compromise on their own volition, they have understood the terms of the compromise and they have affixed their signature.

7. The compromise petition is placed on record.

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8. The appeal is disposed of in terms of the compromise petition.

No order as to costs.

Sd/-

JUDGE Sd/-

JUDGE BSR